

BEFORE THE FEDERAL MARITIME COMMISSION

CHINA UNITED LINES, LTD,

Complainant,

v.

AMAZON.COM SERVICES LLC,

AMAZON LOGISTICS INC.,

and

BEIJING CENTURY JOYO COURIER SERVICE CO.,
LTD.,

Respondents.

DOCKET NO. 25-04

**RESPONDENTS' OPPOSITION TO COMPLAINANT'S MOTION FOR LEAVE
TO FILE REPLY IN SUPPORT OF ITS MOTION TO COMPEL CORPORATE
TESTIMONY**

Complainant China United Lines Ltd. ("China United") has now filed five discovery motions, two within an hour of the close of fact discovery (one just before and one just after). China United has filed a reply with respect to one of these motions and now seeks leave to file a reply as to a second. Under the Commission's rules, "the moving party may not file a reply to a response to a non-dispositive motion unless requested by the Commission or presiding officer, or upon a showing of extraordinary circumstances." 46 C.F.R. § 502.71(c). Because China United has not established extraordinary circumstances to do so, the Motion should be denied. The Court invited Amazon to respond, and we do so briefly herein.

First, China United is not entitled to a reply under the Commission's Rules. There has been no request from the Commission or presiding officer. China United also cannot show "extraordinary circumstances" which would justify permitting it a reply. China United admits the proposed Reply addresses matters "also addressed in the opening brief," and makes no argument

it could not have made in its initial Motion. China United argues that the Reply is necessary because Respondent Amazon.com Services LLC (“Amazon”)¹ has supposedly “mischaracterized” its position, but its proposed Reply identifies no such mischaracterization and simply reargues points from the initial Motion. China United therefore fails to carry its burden and its request should be denied.

Second, the content of the Reply is further evidence China United cannot satisfy the extraordinary circumstances standard. China United pays lip service to its need to show fraud, deceit, or concealment, but does not use any of these words in describing the particular reasons it needs the discovery it seeks. To the contrary, China United speculates that the information will show that Amazon was “*not* enforcing its confidentiality clause [*sic*] in a consistent manner” as part of an “*unjust and unfair scheme*” to rely on “obscure” provisions of its contracts. Reply at 2-3. Nothing in this description of what China United is getting at even hints at fraud, deceit, or concealment. Instead, China United cites other provisions of the Shipping Act not at issue in this case. It also cites Your Honor’s decision in *PKDC, LLC v. CMA CGM S.A.*, 2024 WL 5229720 (2024), a decision available to it when it filed the Motion, which involved refusal to deal, filed rate, and unreasonable practices claims not at issue in this proceeding as the filed rate and unreasonable practices claims have been dismissed and only a fraud claim remains. Fraud is not the same thing as an unreasonable practice. China United’s interest in having the last word to repeat arguments it included in its initial Motion does not constitute “exceptional circumstances.” The Motion for leave should be denied.

¹ Prior filings have noted that Amazon is the only remaining Respondent left in the case.

Respectfully submitted,

____ / John Longstreth ____

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February 20, 2026

CERTIFICATE OF SERVICE

I certify that on this 20th day of February, 2026, the aforesaid Opposition to Complainant's Motion for Leave to File Reply has been filed with the Secretary for the public docket, with a copy to judges@fmc.gov and served on the following counsel of record, as provided by the Initial Order in this proceeding.

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